

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-002
Amendments to Title 2 of the Chickasaw Nation Code
(Chickasaw Indian Employment Preference Provisions)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, tribal employment preferences are a direct exercise of the inherent governmental authority of the Chickasaw Nation over its citizens and its jurisdiction; and

WHEREAS, the amendments contained herein will update specific provisions of Title 2 of the Chickasaw Nation Code by clarifying the tribal employment preferences as administered by the Executive Department.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2 Chapter 5 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

CHAPTER 5
EMPLOYEES AND PERSONNEL POLICIES

ARTICLE A
CHICKASAW INDIAN EMPLOYMENT PREFERENCE

SECTION 2-501.01 **DISCRIMINATION PROHIBITED; EMPLOYMENT PREFERENCE.**

There shall be no discrimination against employees or applicants for employment. Notwithstanding this provision, preference for employment shall be given to ~~Chickasaws and qualified Indian applicants~~ **in the following order as permitted by applicable law:**

1. **Chickasaw Veteran;**
2. **Chickasaw Citizen;**

3. Applicant with Chickasaw Spouse and/or Chickasaw Dependent(s);
4. American Indian Veteran;
5. American Indian;
6. Veteran; and
7. other Applicant.

SECTION 2-501.02**DEFINITIONS.**

~~For the purpose of this article, "Chickasaw Citizen" means any Chickasaw Indian by blood whose name appears on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906 (34 Stat. 137) and their lineal descendants.~~

For purposes of Articles A and C of this Chapter 5:

- A. "American Indian" means a person who has been granted citizenship in a federally-recognized Indian tribe.
- B. "Applicant" means an applicant for employment.
- C. "Chickasaw Citizen" means one who has been granted citizenship in the Chickasaw Nation.
- D. "Dependent(s)" means an adopted or biological Chickasaw child and at least one of the following applies:
 1. the Chickasaw child is below the age of eighteen (18) years of age and resides in the same household;
 2. the Chickasaw child is currently enrolled at a college or university, qualifies as a dependent for income tax purposes and whose age is up to twenty-six (26) years; or
 3. the Chickasaw child is continuously disabled and remains a dependent.
- E. "Spouse" means a person's lawfully married husband or wife.

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 36-002

**Amendments to Title 2 of the Chickasaw Nation Code
(Chickasaw Indian Employment Preference Provisions)**

Explanation: This Resolution updates specific provisions of Title 2 Chapter 5 of the Chickasaw Nation Code by clarifying and providing for enforcement of the tribal employment preferences as administered by the Executive Department.

Presented by: Legislative Committee

F. "Veteran" means a person who has been discharged or released from active duty in the United States Armed Forces, National Guard or Reserves under honorable conditions.

**ARTICLE C
PERSONNEL RULES AND REGULATIONS**

SECTION 2-503.04 MERIT AND UNLAWFUL DISCRIMINATION.

B. The Chickasaw Nation shall not unlawfully discriminate against applicants for employment. Notwithstanding this provision, preference for employment shall be given to Chickasaws and qualified Indian applicants, in the following order as permitted by applicable law:

1. Chickasaw Veteran;
2. Chickasaw Citizen;
3. Applicant with Chickasaw Spouse or Chickasaw Dependent(s);
4. American Indian Veteran;
5. American Indian;
6. Veteran; and
7. other Applicant."

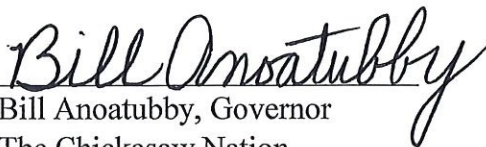
Executed in regular session of the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on December 21, 2018, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 21 2018